

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: Squad #05	CCRB Case #: 201701935	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 02/14/2017 5:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/14/2018	Precinct: 108		
Date/Time CV Reported Mon, 03/13/2017 4:41 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/13/2017 4:41 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Desirae Lafurno	16959	957981	108 PCT
2. SGT Amit Dua	2584	938405	108 PCT
3. POM Brendan Mccaffrey	18164	925699	108 PCT
4. An officer			108 PCT
5. Officers			108 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Caitlin Higgins	20538	952849	108 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Amit Dua	Abuse: Sergeant Amit Dua entered § 87(2)(b) in Queens.	A . Unsubstantiated
B . POF Desirae Lafurno	Discourtesy: Police Officer Desirae Lafurno spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POF Desirae Lafurno	Abuse: Police Officer Desirae Lafurno threatened to damage § 87(2)(b)'s property.	C . Unsubstantiated
D . POM Brendan Mccaffrey	Force: Police Officer Brendan McCaffrey used pepper spray against § 87(2)(b)	D . Exonerated
E . An officer	Force: An officer used physical force against § 87(2)(b)	E . Unfounded
F . Officers	Force: Officers used physical force against § 87(2)(b)	F . Unfounded
G . An officer	Force: An officer used physical force against § 87(2)(b)	G . Unfounded
H . An officer	Abuse: An officer entered § 87(2)(b) in Queens.	H . Officer(s) Unidentified
I . Officers	Force: Officers used physical force against § 87(2)(b)	I . Officer(s) Unidentified

Case Summary

On March 13, 2017, § 87(2)(b) filed this complaint with the CCRB via telephone. On February 14, 2017, § 87(2)(b) removed his neighbor's, § 87(2)(b) surveillance camera, which was installed above § 87(2)(b)'s door and pointed towards § 87(2)(b)'s apartment door. § 87(2)(b) also removed the superintendent's surveillance camera, which was installed in the corner of the hallway ceiling. At approximately 5:30 p.m., Police Officer Desire Lafurno, Police Officer Caitlin Higgins, Police Officer Brendan McCaffrey, and Sergeant Amit Dua of the 108 Precinct knocked on § 87(2)(b)'s door. § 87(2)(b) opened his door and Sgt. Dua allegedly placed his foot in § 87(2)(b)'s doorway, crossing the threshold of the doorway (**Allegation A**). The officers asked § 87(2)(b) to step outside of his apartment. § 87(2)(b) informed the officers that he did not want his private business being heard by his neighbors. The officers asked § 87(2)(b) if they could come into his apartment and speak with him. § 87(2)(b) agreed and informed the officers he had a deaf pitbull who was friendly and would approach the officers to be petted. PO Lafurno allegedly stated, "If your fucking dog gives us a fucking problem, I will shoot your fucking dog in the head" (**Allegation B and Allegation C**). § 87(2)(b) responded, "Well then you are not fucking coming in." At that time, PO McCaffrey discharged pepper spray at § 87(2)(b) (**Allegation D**). § 87(2)(b)'s vision became impaired due to the effects of the pepper spray. An unidentified officer allegedly grabbed § 87(2)(b) by the collar of his shirt, pulled § 87(2)(b) out of his doorway, and threw § 87(2)(b) up against the opposing wall (**Allegation E**). While § 87(2)(b) was against the wall, unidentified officers allegedly repeatedly kicked § 87(2)(b) in his ankles and lower calf area (**Allegation F**). An unidentified officer allegedly picked § 87(2)(b) up by his pants, and threw him face first to the ground (**Allegation G**). While § 87(2)(b) was on the ground, unidentified officers allegedly repeatedly kicked § 87(2)(b) in his lower back and temple area (**subsumed Allegation F**). Unidentified officers allegedly repeatedly punched and kicked § 87(2)(b)'s forearms while attempting to handcuff § 87(2)(b) (**subsumed Allegation F**). After § 87(2)(b) was handcuffed, § 87(2)(b) was sat upright. § 87(2)(b) allegedly heard what he believed to be his apartment door opening and closing and an unidentified male voice state that § 87(2)(b)'s dog had been restrained in the bathroom (**Allegation H**). § 87(2)(b) was then allegedly dragged backwards by the forearms by unidentified officers to the elevator (**Allegation I**) and placed inside. Upon arriving at the downstairs lobby, § 87(2)(b) was placed in an ambulance and taken to § 87(2)(b).

§ 87(2)(b) was arrested § 87(2)(b).

There is no video footage of the incident.

§ 87(2)(g).

Mediation, Civil and Criminal Histories

- § 87(2)(b)'s complaint was unsuitable for mediation, due to § 87(2)(b)'s arrest.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- As of May 18, 2017, an inquiry into the Office of the New York City Comptroller revealed no notice of claim filed by § 87(2)(b).

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (**Board Review 2**).
- PO McCaffrey has been a member of the NYPD for 17 years. PO McCaffrey has 2 prior CCRB cases, involving 2 allegations. No allegations have been substantiated. In CCRB case #201700294, an allegation of refusal to process civilian complaint is currently under investigation by Investigator Godshall. § 87(2)(g)
- PO Lafurno has been a member of the NYPD for 2 years. PO Lafurno has no prior CCRB cases (**Board Review 4**).
- Sgt. Dua has been a member of the NYPD for 11 years. Sgt. Dua has 7 prior CCRB cases, involving 20 allegations. In CCRB case #201604462, an allegation of discourteous action was substantiated. The Board recommended Command Level Instructions; however, the NYPD disposition was not available. § 87(2)(g)

Attempt to Identify Witnesses

On April 7, 2017, Investigator Griffin and Investigator Wang conducted field work at § 87(2)(b). No residents were identified as witnesses to the incident (**Board Review 22**).

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) described the officer, who put his foot in the door, as a male with dark hair approximately 6'0" tall with a large build. Sgt. Dua testified to placing his foot in § 87(2)(b)'s doorway. § 87(2)(g)
- § 87(2)(b) was only able to describe the two female officers involved as both white females with dark brown hair styled in a bun. § 87(2)(b) stated the female officer who used discourteous language and threatened to shoot his dog was the taller of the two female officers. According to their MOS pedigree information, PO Higgins and PO Lafurno are both White females, approximately 5'3" tall with brown hair. § 87(2)(g)
- § 87(2)(b) alleged that after being pepper sprayed, an officer grabbed him by the collar of his t-shirt and threw him against the wall (**Allegation E**). § 87(2)(b) alleged that after being thrown against the wall, officers kicked him in the ankles and lower calves (**Allegation F**). § 87(2)(b) alleged that while being kicked in the ankles and calves, an officer picked him up by the pants and threw him face first onto the ground (**Allegation G**). § 87(2)(b) alleged that while on the ground, the officers kicked him in the temple and lower back area (**subsumed Allegation F**). § 87(2)(b) was unable to identify the officer and officers

- who used the alleged force against him, due to his impaired vision as a result of the pepper spray. None of the involved officers testified to using the alleged force against § 87(2)(b) or witnessing another officer do so. § 87(2)(g)
- § 87(2)(b) was unable to identify the officer, who entered his apartment, as his vision was impaired due to the pepper spray. Neither PO McCaffrey nor Sgt. Dua testified to entering § 87(2)(b)'s apartment to restrain § 87(2)(b)'s dog. Neither PO Higgins nor PO Lafurno testified to witnessing either PO McCaffrey or Sgt. Dua enter § 87(2)(b)'s apartment after § 87(2)(b) had been placed in handcuffs. § 87(2)(g)
 - § 87(2)(b) was unable to identify the officers that dragged him, due to his vision being impaired by the pepper spray. None of the involved officers acknowledged to escorting § 87(2)(b) to the elevator or testified to witnessing the manner in which § 87(2)(b) was escorted to the elevator. § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)

Allegation A –Abuse of Authority: Sergeant Amit Dua entered § 87(2)(b) in Queens.

§ 87(2)(g)

It is undisputed that Sgt. Dua placed his foot in the doorway of § 87(2)(b)'s apartment, crossing the threshold of the door.

§ 87(2)(b) testified (**Board Review 6**) that upon initially opening his door after the officers knocked, Sgt. Dua immediately placed his foot in the doorway, crossing the threshold of the door.

Sgt. Dua testified (**Board Review 7**) that immediately after PO McCaffrey discharged the pepper spray, he felt the spray impair his vision. Sgt. Dua stated he placed his foot in the doorway to stabilize himself. Sgt. Dua confirmed his foot crossed the threshold of the door. Sgt. Dua did not testify to being involved in the physical struggle with § 87(2)(b) at the doorway, but testified to seeing a struggle between PO Lafurno and PO Higgins as they held onto § 87(2)(b)'s arms and attempted to handcuff him. Sgt. Dua described the struggle as “so much was going on at the same time.”

PO Lafurno, PO Higgins, and PO McCaffrey (**Board Review 8, 9, 10**) all testified they did not see Sgt. Dua or any officer place their foot in the doorway of § 87(2)(b)'s apartment during the course of the interaction with § 87(2)(b) § 87(2)(g)

§ 87(2)(b). All the officers stated § 87(2)(b) began to shout and “flail” his arms towards the officers’ faces. After PO McCaffrey discharged

pepper spray, the officers attempted to pull § 87(2)(b) out of his apartment and § 87(2)(b) began to kick and move his arms to resist arrest. Due to the effects of the pepper spray, § 87(2)(b) s and the officers' visions were impaired which contributed to the struggle.

In *People v. Reynoso*, the court held that a defendant who may have either exited his home voluntarily or stuck his head out of the door had no legitimate expectation of privacy. *People v. Reynoso*, 309 A.D.2d 769 (2nd Department 2003) (**Board Review 11**).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED] it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B- Discourtesy: Police Officer Desirae Lafurno spoke discourteously to § 87(2)(b)

Allegation C- Abuse of Authority: Police Officer Desirae Lafurno threatened to damage § 87(2)(b) s property.

It is undisputed that PO Lafurno and § 87(2)(b) conversed outside § 87(2)(b) s apartment, § 87(2)(g) [REDACTED].

§ 87(2)(b) testified (**Board Review 6**) that upon informing the officers of his deaf pitbull, PO Lafurno stated, "If your fucking dog gives us a fucking problem, I will shoot your fucking dog in the head."

PO Lafurno (**Board Review 8**) acknowledged having a brief conversation with § 87(2)(b) regarding his dog. PO Lafurno denied the specific discourteous language allegation and threatening to shoot § 87(2)(b) s dog. PO Lafurno denied using any profanity while interacting with § 87(2)(b)

Sgt. Dua, PO McCaffrey, and PO Higgins (**Board Review 7, 10, 9**) all were consistent in their testimonies and did not recall hearing PO Lafurno using profanity towards § 87(2)(b) and did not recall hearing PO Lafurno threaten to shoot § 87(2)(b) s dog. All the officers heard § 87(2)(b) make a comment about having a dog.

§ 87(2)(g)
[REDACTED]

§ 87(2)(g) , it is recommended that **Allegation B** and **Allegation C** be closed as **Unsubstantiated**.

Allegation D-Force: Police Officer Brendan McCaffrey used pepper spray against § 87(2)(b)

It is undisputed that PO McCaffrey discharged his pepper spray at § 87(2)(b)

§ 87(2)(b) testified (**Board Review 6**) that after PO Lafurno threatened to shoot his pitbull, he told the officers, “Well then you are not fucking coming in.” Immediately, PO McCaffrey discharged his pepper spray, striking § 87(2)(b) in the face.

PO McCaffrey testified (**Board Review 10**) that upon arrival at the location, PO Lafurno and PO Higgins informed him and Sgt. Dua of § 87(2)(b)'s prior aggression against § 87(2)(b) and how they were apprehensive § 87(2)(b) may be violent if they attempted to arrest him. After knocking on § 87(2)(b)'s door, § 87(2)(b) only opened his apartment door partially and only portions of § 87(2)(b)'s body were visible. PO Lafurno asked § 87(2)(b) to exit his apartment. § 87(2)(b) became “agitated” as PO Lafurno continued to request he exit his apartment. § 87(2)(b) began to yell and point his hands within close proximity of the officers. At that time, § 87(2)(b) was standing in the threshold of his apartment doorway. § 87(2)(b) continued to raise his voice as PO Lafurno continued to request § 87(2)(b) exit his apartment. Sgt. Dua grabbed one of § 87(2)(b)'s arm and PO Lafurno grabbed § 87(2)(b)'s other arm and both attempted to handcuff § 87(2)(b). PO Lafurno and Sgt. Dua were “struggling” with § 87(2)(b). PO McCaffrey could not further articulate how the officers were “struggling” with § 87(2)(b). Due to § 87(2)(b) not complying with PO Lafurno's instructions and resisting being handcuffed, PO McCaffrey stated that he felt § 87(2)(b) was a threat at that time. After witnessing the “struggle” with § 87(2)(b), PO McCaffrey discharged his pepper spray towards § 87(2)(b) striking him in the face. The Threat, Resistance, and Injury (T.R.I) report completed by PO McCaffrey (**Board Review 23**), documents that OC Spray was discharged and a forcible takedown was necessary for PO McCaffrey to defend himself, defend other MOS, and overcome resistance or aggression.

PO Lafurno and PO Higgins both testified (**Board Review 8, 9**) to responding to § 87(2)(b)'s complaint in regards to § 87(2)(b) removing her surveillance camera. The building superintendent, § 87(2)(b), allowed the officers to review the building's surveillance camera video feed, which showed § 87(2)(b) removing § 87(2)(b)'s camera and, a short while later, breaking the superintendent's surveillance camera with a hammer. PO Lafurno stated § 87(2)(b) and § 87(2)(b) both stated that § 87(2)(b) was “extremely aggressive” and § 87(2)(b) had assaulted § 87(2)(b) in the past. PO Lafurno requested Sgt. Dua's assistance as she feared § 87(2)(b) would be aggressive upon initial contact. Upon the arrival of Sgt. Dua and PO McCaffrey to the location, PO Lafurno reiterated what § 87(2)(b) and § 87(2)(b) had stated in regards to § 87(2)(b)'s past aggression. Upon knocking on § 87(2)(b)'s door, § 87(2)(b) opened his apartment door partially and refused to exit his apartment. Both PO Higgins and PO Lafurno testified that § 87(2)(b) began to flail his arms and nearly struck the officers in their faces. The officers spoke to § 87(2)(b) in his doorway for several minutes. PO Lafurno stated that § 87(2)(b) made a motion as if he was going to hit Sgt. Dua. At that time, PO Lafurno grabbed § 87(2)(b) around his waist and attempted to pull him out of his apartment. While PO Lafurno's hands were around § 87(2)(b)'s waist, § 87(2)(b)

stepped backwards and pulled PO Lafurno halfway into his doorway. At that moment, PO McCaffrey discharged his pepper spray, striking § 87(2)(b) in the face.

§ 87(2)(g)

§ 87(2)(b) Sgt. Dua stated upon arrival at the location, PO Higgins and PO Lafurno informed him of § 87(2)(b)'s aggressive nature and his assistance was requested as they feared § 87(2)(b) would be aggressive upon initial contact. Sgt. Dua stated that after § 87(2)(b) opened his apartment door, § 87(2)(b) began to flail his arms. The officers spoke to § 87(2)(b) at his doorway for approximately 7-8 minutes. § 87(2)(b) refused to exit his apartment, and took a fighting stance with an open hand. At that time, PO McCaffrey discharged his pepper spray, striking § 87(2)(b) in the face.

§ 87(2)(b) stated in a phone statement (**Board Review 12**), that she was inside her apartment when she heard "a physical struggle" outside in the hallway between, whom she assumed to be between § 87(2)(b) and the officers. § 87(2)(b) heard what she presumed to be a female officer scream and § 87(2)(b) yelling multiple times, "My § 87(2)(b) is a former NYPD Detective." A short while later, officers knocked on § 87(2)(b)'s door and requested water. Several of the officers were covered in pepper spray. § 87(2)(b) heard § 87(2)(b) ask for water, but did not physically see § 87(2)(b) or the physical condition § 87(2)(b) was in.

Patrol Guide Procedure 221-01 (Board Review 13) states that the reasonableness of the use of force by a police officer is determined by the following factors:

- a. The nature and severity of the crime/circumstances
- b. Actions taken by the subject
- c. Duration of the action
- d. Immediacy of the perceived threat or harm to the subject, members of the service and/or bystanders
- e. Whether the subject is actively resisting custody
- f. Whether the subject is attempting to evade arrest by flight
- g. Number of subjects in comparison to the number of MOS
- h. Size, age, and condition of the subject in comparison to the MOS
- i. Subject's violent history, if known
- j. Presence of hostile crowd or agitators
- k. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g)

§ 87(2)(g) PO Lafurno is a § 87(2)(b) female and § 87(2)(b) is a § 87(2)(b) male, § 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegation D** be closed as **Exonerated**.

Allegation E- Force: An officer used physical force against § 87(2)(b)

Allegation F- Force: Officers used physical force against § 87(2)(b)

Allegation G- Force: An officer used physical force against § 87(2)(b)

It is undisputed that a struggle ensued in the hallway involving § 87(2)(b) and all responding officers, § 87(2)(g)

§ 87(2)(b) testified (**Board Review 6**) that immediately after being pepper sprayed, an unidentified officer grabbed him by the collar of his shirt and threw him face first against the wall opposite his apartment. § 87(2)(b) stated his forehead made contact with the wall. § 87(2)(b)'s vision was impaired due to the pepper spray and he was unable to identify or describe the officer that threw him (**Allegation E**). § 87(2)(b) stated that after being thrown up against the wall, unidentified officers repeatedly kicked him in his ankles and lower calves (**Allegation F**). § 87(2)(b) could not articulate the number of times he was kicked in the ankles and lower calves. § 87(2)(b) alleged an unidentified officer then picked him up by his pants and threw him face first to the ground (**Allegation G**). § 87(2)(b)'s knees and forearms made contact with the ground. Once on the ground, unidentified officers repeatedly kicked § 87(2)(b) in his lower back and temple area (**subsumed in Allegation F**). § 87(2)(b) estimated he was kicked 5-6 times in the back and 2 times in the head. The unidentified officers then began to repeatedly punch and kick § 87(2)(b)'s forearms, while attempting to place his hands behind his back and handcuff § 87(2)(b) (**subsumed Allegation F**). § 87(2)(b) alleged that his forearms were covered in bruises § 87(2)(b) § 87(2)(b) provided photographs of his alleged injuries, which resulted from the force used against him (**Board Review 15-20**).

PO Higgins, PO Lafurno, and Sgt. Dua (**Board Review 7, 8, 9**) denied pulling § 87(2)(b) out of his apartment by his shirt and throwing him up against a wall. PO McCaffrey testified (**Board Review 10**) to not recall seeing § 87(2)(b) being pulled out of his apartment by his shirt and being thrown up against a wall. No officers testified to witnessing another officer do such action. All

the officers' testimonies were consistent that § 87(2)(b) was pulled out of his apartment by his arms and a struggle ensued in the hallway. All officers denied punching and kicking § 87(2)(b) while attempting to subdue and handcuff him. All of the officers also denied witnessing any responding officer punch or kick § 87(2)(b) on any part of his body. All the officers' testimonies were consistent that once § 87(2)(b) was outside of his apartment, he kicked and flailed his arms at the officers. The officers issued commands of "stop resisting" to § 87(2)(b). The officers were consistent in their statements that they picked up § 87(2)(b) by his limbs and placed him face first on the ground. § 87(2)(b) continued to kick at the officers, while they attempted to place him on the ground. The only force the involved officers testified to using against § 87(2)(b) was picking up § 87(2)(b) by his arms and legs and placing him face first on the ground (see **Allegations not pleaded**). No officer testified to seeing any physical injuries on § 87(2)(b) § 87(2)(b) at some point, in the struggle spit at Sgt. Dua, striking him in the eye. Sgt. Dua also received a small laceration to his right hand. PO McCaffrey sustained an injury to his knee, and believed he had sustained it from a kick by § 87(2)(b). PO Lafurno sustained a sprained wrist and a cut to her hand. PO Higgins sustained a sprain to her right hand. Both Sgt. Dua and PO Lafurno were put on the "cocktail" medication and both went Line of Duty for an extended period of time. PO Higgins went Line of Duty for 3 days.

The Threat, Resistance, and Injury (T.R.I) reports (**Board Review 23-26**), completed by the officers, corroborated the officers' testimony that the only force used against § 87(2)(b) was OC Spray and a forcible takedown. The TRI reports also corroborated the officers' testimony in regards to the force § 87(2)(b) used against them. The AIDED reports, completed by the officers (**Board Review 27-30**), confirmed the injuries the officers alleged to have sustained during the struggle with § 87(2)(b).

§ 87(2)(g) He stated he was thrown up against a wall, kicked and punched repeatedly in the head, arms, and legs, and thrown to the ground; § 87(2)(g)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(g)

The photographs provided by § 87(2)(b) (**Board Review 15-20**) were alleged to have been taken on February 23, 2017, nine days after the incident. § 87(2)(g)

§ 87(2)(b) The photographs were not time stamped to confirm the photographs were indeed taken on February 23, 2017. The investigation noted that § 87(2)(b)'s clothing was not the same in all the photographs, § 87(2)(g)

§ 87(2)(b) In the photograph containing § 87(2)(b)'s alleged back injury (**Board Review 15**), the injury appears to be larger than 1 centimeter and does not appear healed. § 87(2)(g)

§ 87(2)(b) testified that his friend, § 87(2)(b) took the photographs when § 87(2)(b) was released from jail § 87(2)(b). In an unsworn telephone statement (**Board Review 21**), § 87(2)(b) stated he took the photographs of § 87(2)(b)'s injuries, but the photographs were not taken on § 87(2)(b), and he did not recall the exact date the photographs were taken.

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation E, Allegation F, and Allegation G** be closed as **Unfounded**.

Allegation H- Abuse of Authority: An officer entered § 87(2)(b) in Queens.

§ 87(2)(g)

§ 87(2)(b) testified (**Board Review 6**) that after being handcuffed and sat upright in the hallway, he heard what he presumed to be his apartment door opening and closing. § 87(2)(b) heard a male officer's voice state that § 87(2)(b)'s dog had been restrained in the bathroom. § 87(2)(b)'s vision was impaired due to the effects of the pepper spray, and, therefore, could not confirm if it was his apartment door that was opening and closing or the identity or description of the male officer that entered his apartment to restrain his dog.

§ 87(2)(b) stated that his friend, § 87(2)(b), stayed in § 87(2)(b)'s apartment while § 87(2)(b) was incarcerated for § 87(2)(b). In § 87(2)(b)'s unsworn telephone statement (**Board Review 21**), he alleged that he arrived at § 87(2)(b)'s apartment later in the evening on February 14, 2017. § 87(2)(b) stated that § 87(2)(b) tends to keep his apartment "extremely neat" and that items appeared "in disarray." § 87(2)(b) stated some couch pillows were on the floor; however, he did not witness what caused § 87(2)(b)'s apartment to be "in disarray."

Sgt. Dua and PO McCaffrey (**Board Review 7, 10**) both denied entering § 87(2)(b)'s apartment to restrain his dog following § 87(2)(b) being handcuffed and denied seeing any other officer do so. Sgt. Dua stated that after § 87(2)(b) was handcuffed, he knocked on § 87(2)(b)'s door, who allowed him into her apartment to flush his eyes out and obtain water for the other officers. PO

McCaffrey stated that after § 87(2)(b) was handcuffed, he flushed out § 87(2)(b)'s eyes with the water provided by § 87(2)(b).

PO Lafurno and PO Higgins (**Board Review 8, 9**) both denied seeing Sgt. Dua or PO McCaffrey enter § 87(2)(b)'s apartment after § 87(2)(b) was handcuffed and seated upright.

In § 87(2)(b)'s unsworn telephone statement (**Board Review 12**), § 87(2)(b) was unable to see if § 87(2)(b)'s apartment door was open when she opened her door briefly to provide water to the officers.

§ 87(2)(g), it is recommended that **Allegation H** be closed as **Officer Unidentified**.

Allegation I- Force: Officers used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after being placed in handcuffs and seated upright in the hallway, he was dragged backwards by his forearms to the elevator by officers. § 87(2)(g)

§ 87(2)(b) testified (**Board Review 6**) after being handcuffed and sat upright in the hallway; he was dragged, approximately 8 feet, backwards by his forearms to the elevator. § 87(2)(b) was then stood upright and escorted into the elevator. § 87(2)(b)'s vision was impaired due to the effects of the pepper spray and was unable to identify or describe which officers dragged him to the elevator.

All involved officers testified (**Board Review 7-10**) to not have interacted with § 87(2)(b) after he was handcuffed, seated upright, and had his eyes flushed out. Sgt. Dua stated he was inside § 87(2)(b)'s apartment washing his eyes out when § 87(2)(b) was placed in the elevator; therefore, he did not see the manner in which § 87(2)(b) was brought to the elevator. PO McCaffrey stated he was helping his fellow officers flush their eyes out with water and did not assist in transporting § 87(2)(b) to the elevator. PO McCaffrey further stated that § 87(2)(b) had stopped resisting once handcuffed and there would be no need to drag him to the elevator. PO Lafurno stated she did not recall which officers brought § 87(2)(b) to the elevator, but believed § 87(2)(b) walked to the elevator. PO Higgins did not recall even seeing an elevator at the location, and believed § 87(2)(b) was walked down the stairs.

§ 87(2)(g), it is recommended that **Allegation I** be closed as **Officers Unidentified**.

Squad: 10

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date